

CRIMINAL LAW 1: COURSE OUTLINE & COMPLETE TOPIC GUIDE

Book I of the Revised Penal Code (Articles 1–113, Act No. 3815 as Amended) & Related Special Penal Laws

Manila Law College • First Semester, AY 2026-2027

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COURSE OVERVIEW & ADMINISTRATIVE INFORMATION

Course Description: This three-unit course introduces law students to the fundamental principles, doctrines, and statutory provisions of Philippine Criminal Law under Book I (Articles 1–113) of the Revised Penal Code (Act No. 3815), as amended, alongside relevant special penal statutes.

Assessment Component	Weight Percentage
Attendance & Class Demeanor	10%
Recitation / Class Discussions / Quizzes	30%
Mid-Term Examination	30%
Final Examination	30%

Basic References & Statutory Anchors

- **Commentaries:** Any standard commentary or textbook on Criminal Law (Book I, Articles 1–113 of the Revised Penal Code, as amended) by recognized legal authors: Reyes, Boado, Campanilla, or Ortega.
- **Primary Statute:** Act No. 3815 (The Revised Penal Code of the Philippines, as amended).
- **Fundamental Law:** The 1987 Philippine Constitution (specifically Article III: Bill of Rights).
- **Special Laws:** Special Penal Statutes & Supreme Court En Banc / Division Landmark Decisions.

I. GENERAL PRINCIPLES OF CRIMINAL LAW

A. Definitions & Nature

- **1. Definition:** Criminal law is that branch or division of law which defines crimes, treats of their nature, and provides for their punishment (Reyes, citing 12 Cyc. 129).

- **2. Substantive & Public Character:** It is substantive because it defines the State's right to inflict punishment and the liability of the offenders. It is public law because it deals with the relation of the individual with the State.

B. Theories of Criminal Law

- **1. Classical vs. Positivist:** Classical Theory (Jus Puniendi based on human free will, moral culpability, and retribution; penalty is strictly proportional to the gravity of the crime) vs. Positivist Theory (Criminal is regarded as a sick individual; crime is a social phenomenon; penalties are reformatory and protective of society).
- **2. Retributive vs. Restorative:** Retributive Justice (Vindictive justice, eye-for-an-eye, proportional punishment) vs. Restorative Justice (Restoration of victims, rehabilitation of offenders, community reconciliation).

C. Crime & Sources of Criminal Law

- **1. Definition of Crime:** Crime is an act committed or omitted in violation of a public law forbidding or commanding it (Bouvier's Law Dictionary, Rawle's 3rd Rev., 729).
- **2. Sources:** (a) The Revised Penal Code (Act No. 3815) and amendments thereto; (b) Special Penal Laws enacted by the Legislature; (c) Penal Presidential Decrees and Executive Orders during revolutionary / constitutional periods.

D. Characteristics of Criminal Law

- **1. Generality:** Penal laws and those of public security and good order shall be obligatory upon all who live or sojourn in the Philippine territory (Art. 14, Civil Code). Exceptions: Treaty stipulations, generally accepted principles of international law (sovereigns, diplomatic representatives), and constitutional immunities (Art. VI, Sec. 11, 1987 Const. — parliamentary speech and debate).
- **2. Territoriality:** Penal laws are enforceable only within the national territory of the Philippines (Art. 2, RPC). Exceptions under Art. 2 (Extraterritoriality): (1) Offenses on Philippine ship or airship; (2) Forging/counterfeiting coins/currency notes of the Philippines; (3) Introducing into the country counterfeit coins/notes/obligations; (4) Offenses committed by public officers in the exercise of their functions; (5) Crimes against national security and the law of nations (e.g., Treason, Espionage, Piracy).
- **3. Prospectivity:** Penal laws look forward and have no retroactive effect (Art. 21 & 22 RPC; Art. 4 Civil Code; Art. III Sec. 22 1987 Const.). Exception: Penal laws shall have retroactive effect in so far as they favor the person guilty of a felony, provided he is not a habitual delinquent (Art. 22, RPC). Constitutional prohibition on Ex Post Facto Laws and Bills of Attainder.

E. Construction & Interpretation of Penal Laws

- **1. Strict Construction:** Penal laws are strictly construed against the State and liberally in favor of the accused (In dubio pro reo). Ambiguities must be resolved in favor of liberty.
- **2. Harmonization:** All provisions of the Penal Code must be harmonized and construed as a cohesive whole.
- **3. Prevalence of Spanish Text:** In case of conflict or ambiguity, the Spanish text of Act No. 3815 prevails over the English translation (People v. Mesias).
- **4. Duty of Courts (Art. 5 RPC):** Court duty when an act is not covered by law but should be repressed (report to Chief Executive via DOJ), or when penalty is clearly excessive (Art. 5, RPC).

- **5. Effect of Repeal/Amendment:** Absolute repeal of a penal law extinguishes criminal liability unless saved by transitional clauses.

II. FELONIES AND CRIMINAL LIABILITY

A. Crimes in General

- **1. Terminology:** Terms: Crime (generic), Felony (punishable under RPC), Offense (punishable under Special Laws), Infraction / Misdemeanor (minor breaches, ordinances, light offenses), Private Offenses (Rule 110), Victimless Crimes, Status Offenses.
- **2. Mala In Se vs. Mala Prohibita:** Mala in se (inherently immoral, evil in itself; criminal intent is necessary; good faith is a defense) vs. Mala prohibita (acts prohibited by special statute for public policy; intent is immaterial; the only inquiry is whether the statute was violated).
- **3. Moral Turpitude:** Crimes involving moral turpitude (acts inherently contrary to justice, honesty, modesty, or good morals).
- **4. Relation of RPC to Special Laws:** Article 10 RPC: Offenses punishable under special laws are not subject to the provisions of Book I of the RPC, except when the special law explicitly provides or uses RPC penalties by reference (supplementary nature of RPC).

B. Elements of Felonies (Art. 3, RPC)

- **1. Act or Omission:** An act (bodily movement producing external effect) or omission (failure to perform a positive duty required by law, e.g., Arts. 116, 137, 208, 213, 223, 234, 275 RPC).
- **2. Legality:** Nullum crimen, nulla poena sine lege (There is no crime when there is no law punishing it).
- **3. Dolo (Criminal Intent):** Dolo (Deceit / Malice): Requisites are Freedom, Intelligence, and Intent. Presumption of intent; General vs. Specific intent; Intent distinguished from Motive; Mistake of Fact (Ignorantia facti excusat — Ah Chong doctrine; requisites: honest mistake, lack of negligence, act would have been lawful had facts been as believed).
- **4. Culpa (Criminal Negligence):** Culpa (Fault): Act committed through imprudence (deficiency of action / lack of skill), negligence (deficiency of perception / lack of foresight), lack of foresight, or lack of skill (Art. 3 & Art. 365, RPC; Ivler doctrine on reckless imprudence as a distinct quasi-offense).

C. Incurring Criminal Liability (Art. 4, RPC)

- **1. Proximate Cause & Transfer of Intent:** Criminal liability is incurred by any person committing a felony although the wrongful act done be different from that which he intended (Art. 4, par. 1).
 - **Three Scenarios:** Praeter Intentionem (the injurious result is greater than that intended; Art. 13[3]); Aberratio Ictus (mistake in the blow, where the act directed at one strikes another; Art. 48 complex crime); Error in Personae (mistake in identity; Art. 49).
- **2. Impossible Crimes:** Art. 4, par. 2: Commission of an act which would be an offense against persons or property, were it not for the inherent impossibility of its accomplishment (physical impossibility or legal impossibility) or the employment of inadequate or ineffectual means (Art. 4[2], Art. 59).

D. Stages of Execution (Art. 6, RPC)

- **1. Attempted Stage:** The offender commences the commission of a felony directly by overt acts, and does not perform all the acts of execution which should produce the felony by reason of some cause or accident other than his own spontaneous desistance.

- **2. Frustrated Stage:** The offender performs all the acts of execution which should produce the felony as a consequence but which, nevertheless, do not produce it by reason of causes independent of the will of the perpetrator.
- **3. Consummated Stage:** All the elements necessary for the execution and accomplishment of the felony are present.
- **4. Specific Felony Analysis:** Special rules on stages of execution in specific crimes: Rape (mere penetration, however slight), Theft (taking and unlawful taking / control; Valenzuela doctrine: no frustrated theft), Robbery (taking with violence/intimidation or force upon things), Homicide/Murder (intent to kill, wound nature).
- **5. Penalties for Stages:** Rules on graduated penalties for attempted and frustrated stages (Arts. 50–57, RPC).

E. Conspiracy & Proposal (Art. 8, RPC)

- **1. Definitions:** Conspiracy exists when two or more persons come to an agreement concerning the commission of a felony and decide to commit it. Proposal exists when the person who has decided to commit a felony proposes its execution to some other person.
- **2. General Rule & Exceptions:** Conspiracy and proposal to commit a felony are punishable only in the cases in which the law specially provides a penalty therefor (e.g., Treason Art. 115, Rebellion Art. 136, Sedition Art. 141, Monopolies Art. 186, Brigandage Art. 306).
- **3. Dual Nature of Conspiracy:** Conspiracy as a felony in itself vs. Conspiracy as a mode of incurring criminal liability (collective responsibility where the act of one is the act of all).

F. Multiple Offenders & Classifications

- **1. Recidivism:** Recidivism (Art. 14[9]): Final conviction of another crime embraced in the same Title of the RPC at the time of trial.
- **2. Reiteracion:** Reiteracion / Habituality (Art. 14[10]): Offender has been previously punished for an offense to which the law attaches an equal or greater penalty, or for two or more crimes with lighter penalties.
- **3. Habitual Delinquency:** Habitual Delinquency (Art. 62[5]): Within 10 years from last release or conviction of serious/less serious physical injuries, robo, hurto, estafa, or falsification, found guilty a third time or oftener.
- **4. Quasi-Recidivism:** Quasi-Recidivism (Art. 160): Commission of a new felony before beginning to serve or while serving sentence for a previous conviction. Punished with the maximum period of the penalty for the new felony.
- **5. Classification (Arts. 7, 9):** Grave (capital or penalties with afflictive periods), Less Grave (penalties correctional), Light Felonies (arresto menor or fine under statutory threshold; Art. 9 RPC).

III. CIRCUMSTANCES AFFECTING CRIMINAL LIABILITY

A. Justifying Circumstances (Art. 11, RPC)

Where the act is in accordance with law; no crime and no criminal liability, and generally no civil liability ex delicto.

- **1. Self-Defense:** Self-Defense (Art. 11[1]): Requisites: (a) Unlawful aggression (indispensable); (b) Reasonable necessity of the means employed to prevent or repel it; (c) Lack of sufficient provocation on the part of the person defending himself.
- **2. Defense of Relatives:** Defense of Relatives (Art. 11[2]): Requisites: (a) Unlawful aggression; (b) Reasonable necessity of means; (c) In case provocation was given by person attacked, the defender took no part therein.

- **3. Defense of Stranger:** Defense of Stranger (Art. 11[3]): Requisites: (a) Unlawful aggression; (b) Reasonable necessity of means; (c) Defender not induced by revenge, resentment, or other evil motive.
- **4. State of Necessity:** State of Necessity / Avoidance of Greater Evil (Art. 11[4]): (a) Evil sought to be avoided actually exists; (b) Injury feared greater than that done; (c) No other practical and less harmful means. Note: Civil liability is borne by persons benefited (Art. 101).
- **5. Fulfillment of Duty:** Fulfillment of Duty / Lawful Exercise of Right or Office (Art. 11[5]): (a) Accused acted in performance of duty/exercise of right; (b) Injury or offense was necessary consequence of due performance.
- **6. Lawful Order:** Obedience to an Order Issued by a Superior for some Lawful Purpose (Art. 11[6]): (a) Order issued by superior; (b) Order for a lawful purpose; (c) Means used lawful.

B. Exempting Circumstances (Art. 12, RPC)

Where there is a complete absence of free will, intelligence, or voluntariness; no criminal liability, but civil liability remains (except accident and insuperable cause).

- **1. Imbecility / Insanity (Art. 12[1]):** Imbecility (exempt in all cases) or Insanity (exempt unless acted during a lucid interval).
- **2. Minority (RA 9344 & Art. 12[2-3]):** Under 15 years: Absolute exemption from criminal liability (subject to intervention program). Above 15 but below 18: Exempt unless acted with discernment (subject to diversion; RA 9344 as amended by RA 10630; PD 603; Juvenile Justice Rules).
- **3. Accident:** Accident (Art. 12[4]): Performing a lawful act with due care, causes injury by mere accident without fault or intention of causing it.
- **4. Compulsion & Fear:** Irresistible Force (Art. 12[5]) and Uncontrollable Fear of an equal or greater injury (Art. 12[6]).
- **5. Insuperable Cause:** Insuperable Cause (Art. 12[7]): Prevented by some lawful or insuperable cause from performing an act required by law.

C. Mitigating Circumstances (Art. 13, RPC)

- **1. Incomplete Defense / Exemption:** Incomplete Justifying or Exempting circumstances (majority of requisites present; Art. 13[1] & Art. 67).
- **2. Age:** Under 18 or over 70 years old (Art. 13[2]).
- **3. Lack of Intent:** Offender had no intention to commit so grave a wrong as that committed (Praeter intentionem; Art. 13[3]).
- **4. Sufficient Provocation:** Sufficient provocation or threat on the part of the offended party immediately preceding the act (Art. 13[4]).
- **5. Immediate Vindication:** Immediate vindication of a grave offense to the one committing the felony, his spouse, ascendants, descendants, or siblings (Art. 13[5]).
- **6. Passion or Obfuscation:** Having acted upon an impulse so powerful as naturally to have produced passion or obfuscation (Art. 13[6]).
- **7. Voluntary Surrender & Plea:** Voluntary surrender to authorities or spontaneous confession of guilt in open court before presentation of prosecution evidence (Art. 13[7]).
- **8. Physical Defect:** Physical defect (deaf, mute, blind) restricting means of action or communication (Art. 13[8]).
- **9. Illness:** Illness diminishing the exercise of will-power without depriving consciousness of acts (Art. 13[9]).

- **10. Analogous Circumstances:** Any other circumstance of a similar nature and analogous to those mentioned (Art. 13[10]).

D. Aggravating Circumstances (Art. 14, RPC)

Circumstances that increase the penalty without exceeding the maximum provided by law. Kinds: Generic, Specific, Qualifying, Inherent, and Special.

- **Par. 1: Public Position:** Advantage taken by the offender of his public position.
- **Par. 2: Contempt / Insult to Authority:** Committed in contempt of or with insult to public authorities.
- **Par. 3: Disregard of Rank, Age, Sex, or Dwelling:** Insult or disregard of respect due on account of rank, age, sex, or committed in the victim's dwelling without provocation.
- **Par. 4: Abuse of Confidence & Ungratefulness:** Act committed with abuse of confidence or obvious ungratefulness.
- **Par. 5: Palace of Chief Executive / Place of Worship:** Committed in the presence of Chief Executive or in places dedicated to religious worship or discharge of public duties.
- **Par. 6: Nighttime, Uninhabited Place, or Band:** Nocturnity, despoblado, or cuadrilla (more than 3 armed malefactors) facilitating commission.
- **Par. 7: Calamity / Misfortune:** Committed on occasion of conflagration, shipwreck, earthquake, epidemic, or other disaster.
- **Par. 8: Aid of Armed Men:** Committed with aid of armed men or persons who insure or afford impunity.
- **Par. 9: Recidivism:** Conviction by final judgment of another crime in the same Title of the RPC at time of trial.
- **Par. 10: Reiteration:** Offender previously punished for offenses with equal/greater penalty or two lighter penalties.
- **Par. 11: Price, Reward, or Promise:** Crime committed in consideration of price, reward, or promise.
- **Par. 12: Inundation, Fire, Explosion, Great Waste:** Committed by means of poison, explosion, derailment, or artifice involving great waste.
- **Par. 13: Evident Premeditation:** Requisites: (a) Time offender determined to commit crime; (b) Act indicating clinging to determination; (c) Sufficient lapse of time to allow reflection.
- **Par. 14: Craft, Fraud, or Disguise:** Employment of cunning, trickery, deceit, or disguise to hide identity.
- **Par. 15: Superior Strength & Means to Weaken Defense:** Deliberately taking advantage of physical disparity or weakening victim's defense.
- **Par. 16: Treachery (Alevosia):** Employing means, methods, or forms of execution tending directly and specially to insure execution without risk to self from defense.
- **Par. 17: Ignominy:** Means employed adding moral suffering, humiliation, or shame to the natural effects of the act.
- **Par. 18: Unlawful Entry:** Entrance effected by a way not intended for ingress.
- **Par. 19: Breaking Wall, Roof, Floor, or Window:** Breaking structures as a means to commit the crime.
- **Par. 20: Aid of Minors / Motor Vehicles:** Aid of persons under 15, or by means of motor vehicles, motorized watercraft, airships (RA 5438).
- **Par. 21: Cruelty:** Deliberately augmenting the wrong by causing other unnecessary physical pain and suffering before death.

E. Alternative Circumstances (Art. 15, RPC)

- **1. Relationship:** Relationship (spouse, ascendant, descendant, legitimate/natural/adopted brother/sister, relative by affinity within same degrees; mitigating in crimes against property, aggravating in crimes against persons/chastity).
- **2. Education:** Degree of instruction and education of the offender (low education mitigating, high education aggravating if used to facilitate crime).
- **3. Intoxication:** Intoxication (mitigating if not habitual and not subsequent to the plan to commit felony; aggravating if intentional or habitual).

F. Absolutory Causes & Battered Woman Syndrome

- **1. Instigation vs. Entrapment:** Instigation (law enforcer instigates person to commit crime; complete defense, accused acquitted) vs. Entrapment (trapping criminal in the act; valid law enforcement, accused liable).
- **2. Specific Absolutory Causes:** Arts. 6(3) spontaneous desistance; Art. 16 accessory exempt by relationship; Art. 20 accessory relationship; Art. 247 death under exceptional circumstances; Art. 280 trespass to dwelling; Art. 332 property relationship exemptions; Art. 344 marriage in private crimes.
- **3. Battered Woman Syndrome:** Victim-survivors suffering from Battered Woman Syndrome (BWS) do not incur criminal and civil liability notwithstanding absence of elements of self-defense (RA 9262, Anti-VAWC Act; Genosa doctrine).

IV. PERSONS CRIMINALLY LIABLE (Articles 16–20, RPC)

A. In Grave & Less Grave Felonies (Art. 16)

- **1. Principals (Art. 17):** Principals by Direct Participation (those who take a direct part in the execution of the act; Art. 17[1]).
 - **By Inducement:** Principals by Inducement (those who directly force or induce others to commit it; Art. 17[2]; requisites: command of determinative power, made with intention of procurement).
 - **By Indispensable Cooperation:** Principals by Indispensable Cooperation (those who cooperate in the commission of the offense by another act without which it would not have been accomplished; Art. 17[3]).
- **2. Accomplices (Art. 18):** Those who, not being principals, cooperate in the execution of the offense by previous or simultaneous acts (Art. 18).
- **3. Accessories (Arts. 19 & 20):** Those who, having knowledge of the commission of the crime, and without having participated therein as principals or accomplices, take part subsequent to its commission by: (1) profiting or assisting offender to profit; (2) concealing or destroying body/effects/instruments of crime; (3) harboring, concealing, or assisting in the escape of the principal (Art. 19). Exemption of accessories by relationship (Art. 20). Anti-Fencing Law (PD 1612) and Obstruction of Justice (PD 1829).

B. In Light Felonies (Art. 16)

- **Rule:** Only principals and accomplices are criminally liable for light felonies; accessories are not liable.

V. PENALTIES (Articles 21–88, RPC)

A. Constitutional Limitations & Purposes

- **1. Constitutional Standards:** Bill of Rights limitations: Due process, equal protection, prohibition of cruel, degrading, or inhuman punishment, excessive fines, ex post facto laws, and bills of attainder.
- **2. Penal Philosophies:** Purposes: Retribution, deterrence, rehabilitation/reformation, social defense, and exemplarity.

B. Classification & Scale of Penalties (Arts. 25–26)

- **Classification:** Principal vs. Accessory; Capital (Death — prohibited by RA 9346), Afflictive (Reclusion perpetua, Reclusion temporal, Prision mayor), Correctional (Prision correccional, Arresto mayor, Destierro), Light (Arresto menor, Public censure). Divisible vs. Indivisible penalties.
- **Distinction:** Reclusion Perpetua (20 years and 1 day to 40 years, with accessory penalties, eligible for pardon after 30 years) vs. Life Imprisonment (imposed for special penal laws, no fixed duration, no automatic accessory penalties).
- **Special Measures:** Preventive Imprisonment (Art. 29, credited in full or 4/5), Civil Interdiction (Art. 34), Bond to Keep the Peace (Art. 35), Subsidiary Imprisonment (Art. 39).

C. Application & Graduation of Penalties

- **1. Scale & Participation:** Rules on applying penalties according to stages of commission and participation (Arts. 46, 50–57).
- **2. Modifying Circumstances Rules:** Rules on graduating penalties and mitigating/aggravating circumstances (Arts. 61–65, 71; Indivisible vs. Divisible penalty rules Art. 63 & 64).
- **3. Complex Crimes (Art. 48):** Compound Crimes (single act constitutes two or more grave/less grave felonies) and Complex Crimes Proper (an offense is a necessary means for committing the other; Art. 48). Special Complex Crimes (composite crimes, e.g., Robbery with Homicide, Rape with Homicide).
- **4. Continued vs. Continuing:** Continued Crime (delito continuado — series of acts animated by a single criminal impulse) vs. Continuing Crime (elements occur across multiple territorial jurisdictions).
- **5. Three-Fold Rule (Art. 70):** Maximum duration of convict's sentence shall not exceed three-fold the length of time corresponding to the most severe penalty imposed upon him, not to exceed 40 years (Art. 70).

D. Indeterminate Sentence Law (Act No. 4103, as Amended)

- **1. Application to RPC Offenses:** Maximum Term: Look to the RPC rules (considering modifying circumstances). Minimum Term: Within the range of the penalty next lower in degree to that prescribed by the Code without considering modifying circumstances.
- **2. Application to Special Laws:** Maximum Term: Not to exceed maximum penalty fixed by statute. Minimum Term: Not to be less than the minimum penalty prescribed.
- **3. Disqualifications:** Offenders convicted of offenses punished with death or life imprisonment/reclusion perpetua; treason, rebellion, sedition, espionage, piracy; habitual delinquents; escapees; those granted conditional pardon and violated terms; maximum term does not exceed 1 year (Sec. 2, Act 4103).

E. Probation Law (PD 968, as Amended)

- **1. Nature & Definition:** Disposition under which a defendant, after conviction and sentence, is released subject to conditions and supervision.

- **2. Disqualified Offenders:** Sentenced to serve maximum term of imprisonment of more than 6 years; convicted of crime against national security; previously convicted of offense punished by imprisonment of more than 6 months and 1 day and/or fine; appeal taken from judgment of conviction (subject to RA 10707 amendment allowing probation upon non-substantive penalty modifications).

VI. EXTINCTION OF CRIMINAL LIABILITY (Articles 89–99, RPC)

A. Total Extinction (Art. 89)

- **1. Death:** Death of the convict (extinguishes personal and pecuniary penalties; civil liability ex delicto extinguished under *People v. Bayotas*, but civil liability from other sources of obligations may survive).
- **2. Service:** Service of the sentence.
- **3. Amnesty:** Amnesty (obliterates the offense itself; public act, requires legislative concurrence; applies to political offenses).
- **4. Absolute Pardon:** Absolute Pardon (pardons punishment, does not obliterate guilt; executive act, no congressional concurrence required; does not restore public office or right to practice profession unless expressly restored).
- **5. Prescription of Crime:** Prescription of Crimes (Arts. 90 & 91 RPC; Act No. 3326 for special laws). Time limits from 20 years (capital offenses) down to 2 months (light offenses); interrupted by filing of complaint/information.
- **6. Prescription of Penalty:** Prescription of Penalties (Arts. 92 & 93 RPC). Runs from the date the convict evaded service of sentence.
- **7. Marriage of Offended Party:** Marriage of the offended woman in crimes of Rape, Seduction, Abduction, and Acts of Lasciviousness (Art. 344 RPC & Art. 266-C).

B. Partial Extinction (Art. 94)

- **1. Conditional Pardon:** Conditional Pardon (Art. 95): Contractual executive clemency; violation authorizes re-arrest or prosecution under Art. 159 RPC.
- **2. Commutation:** Commutation of Sentence (Art. 96): Substitution of a lesser penalty.
- **3. Good Conduct Allowances:** Good Conduct Time Allowance (GCTA) under Arts. 97, 98, 99 RPC, and RA 10592.

VII. CIVIL LIABILITY ARISING FROM CRIMES (Articles 100–113, RPC)

- **1. Fundamental Rule:** Every person criminally liable for a felony is also civilly liable (Art. 100, RPC — Civil liability ex delicto).
- **2. Persons Civilly Liable:** Principals, accomplices, and accessories are liable solidarily among themselves and subsidiarily for the other classes (Arts. 109–110). Subsidiary civil liability of innkeepers, employers, and teachers (Arts. 102–103; Basilio and Philippine Rabbit doctrines).
- **3. What Civil Liability Includes:** (1) Restitution of the thing itself; (2) Reparation of the damage caused; (3) Indemnification for consequential damages (Art. 104; *Castro v. Bustos*). Moral, exemplary, nominal damages, and civil indemnity under prevailing jurisprudence.
- **4. Extinction:** Civil liability is extinguished in the same manner as other obligations under the Civil Code (payment, loss of thing, condonation, confusion, compensation, novation; Art. 112). Extinction of penal action does not necessarily extinguish civil action if founded on other sources of obligation (Art. 113 & Rule 111).

